

		requested by Plaintiffs, as immaterial to the disposition of this motion. Defendants to give notice.
108	Birchall vs. Orange County Sheriff Department 25-01505924	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF’S DEPARTMENT (the “County”), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court’s non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant’s Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL’s Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Effective January 1, 2023, an unrepresented party may consent to receive electronic service. [CCP § 1010.6(c)(2); see CRC 2.251(c)(3)(B)—unrepresented parties must affirmatively consent to electronic service] Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) by “[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.” [CCP § 1010.6(c)(3); see CRC 2.251(b)(1)]

		Any person who has given express consent to electronic service may expressly withdraw that consent. [CCP § 1010.6(c)(4)] (The Judicial Council has promulgated an optional form for doing that.) Here, it does not appear Plaintiff provided express consent to electronic service. Indeed, the Court recently provided notice of its minute order by mailing it to Plaintiff. Additionally, the Proof of Service for this Motion is defective because the electronic service address of the person making the service was not provided. [See [CCP § 1013b(a), (b); CRC 2.251(j)(1)]. Therefore, the motion is continued to August 18, 2026 at 10:00 am, in order for Defendant to serve the Plaintiff via mail at MARC BRUCE RONALD BIRCHALL 555 N EL CAMINO REAL A170 SAN CLEMENTE, CA 92672. 2. Case Management Conference is continued to August 18, 2026, at 10:00 am. Defendant to also give notice of this Court's ruling.
109	URP California, LLC vs. Kohr 24-01391305	Plaintiff, URP California, Inc. ("Plaintiff" or "URP"), moves for a right to attach order and writ of attachment against Defendant, Paul Khor ("Khor"), as to real property located at 126 Cinnamon Teal, Aliso Viejo, California 92656, and 16 Clearbrook, Irvine, CA 92614, with the amount to be secured by the attachment totaling \$182,729.52 which includes estimated costs of \$5,000 and estimated allowable attorney fees of \$50,000. The Application is DENIED. Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a RTAO & writ of attachment by filing an application for the order & writ with the court in which the action is brought. (Code Civ. Proc. § 484.010.) Following a hearing on the application, the court may only issue a RTAO if it finds the following: